

Chief Justice's Court

Case :- WRIT - C No. - 10265 of 2021

Petitioner :- Smt. Urmila Devi

Respondent :- State Of U P And 5 Others

Counsel for Petitioner :- Arvind Kumar Pandey,H.K Asthana

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Sanjay Yadav,Chief Justice

Hon'ble Prakash Padia,J.

Matter is taken up through video conferencing.

It is submitted by learned counsel for the petitioner that arguing counsel is not available and in personal difficulty to conduct the matter.

In view whereof and as prayed for, list this matter in the week commencing 12.07.2021 as fresh.

Order Date :- 16.6.2021

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(Prakash Padia, J.)

(Sanjay Yadav, C.J.)

Court No. - 40

Case :- WRIT - C No. - 10265 of 2021

Petitioner :- Smt. Urmila Devi

Respondent :- State Of U P And 5 Others

Counsel for Petitioner :- Arvind Kumar Pandey,H.K Asthana

Counsel for Respondent :- C.S.C.,Chetan Chatterjee,Narendra Kumar Tiwari

Hon'ble Manoj Misra,J.

Hon'ble Dinesh Pathak,J.

The counsel for the petition could not connect to address the court through video conferencing.

It appears that Sri Chetan Chatterjee is connected for the respondents 4 to 6 but is not visible on the screen.

Let this matter be put up, as fresh, again on 16th July, 2021.

Order Date :- 12.7.2021

Sunil Kr Tiwari

Court No. - 3

Case :- WRIT - C No. - 10265 of 2021

Petitioner :- Smt. Urmila Devi

Respondent :- State Of U P And 5 Others

Counsel for Petitioner :- Arvind Kumar Pandey, H.K. Asthana

Counsel for Respondent :- C.S.C., Chetan Chatterjee, Narendra Kumar Tiwari

Hon'ble Naheed Ara Moonis, J.

Hon'ble Saumitra Dayal Singh, J.

Heard Sri H.K. Asthana, learned counsel for the petitioner and Sri Chetan Chatterjee, learned counsel for the respondents.

Present writ petition has been filed seeking to challenge the recovery certificate dated 31.10.2020 whereby electricity dues in excess of Rs.16 lakh are being recovered from the petitioner against her account no.741800574811.

Submission of learned counsel for the petitioner is that the amount being demanded is wholly excessive and exaggerated. The bill amount needs to be corrected.

On the other hand, learned counsel for the respondents points out that adequate remedy for correction is contemplated under Clause 6.5 of the UP Electricity Supply Code, 2005 (hereinafter referred to as the 'Code'). The petitioner has not made any such application for correction in accordance with law and therefore, at present, the demand being made is wholly justified.

Having heard learned counsel for the parties and having perused the record, no useful purpose would be served in keeping the present petition pending or calling for a counter affidavit, at this stage.

Suffice to note that the petitioner has adequate alternative statutory remedy of correction in the disputed bill under Clause 6.5 of the Code.

Accordingly, the writ petition is **disposed of** with a direction that in case the petitioner files a proper application disputing the bill giving rise to the recovery before respondent no.5 within a period of two weeks from today along with a copy of this order, the said respondent shall, within one week therefrom, communicate to the petitioner, the amount of pre-deposit required to be made

to maintain that application in terms of Clause 6.5(b)(ii) of the Code, at the address supplied by the petitioner in her application. Once the amount has thus been communicated to the petitioner, she shall deposit the same within a further period of two weeks therefrom. Upon deposit of that amount, the respondent no.5 shall proceed to verify the correctness of the claim made by the petitioner and pass appropriate orders giving adequate reasons within a week from the deposit being made by the petitioner and the same shall be communicated to the petitioner.

For a period of one month from today, no coercive measure shall be adopted against the petitioner, subject to the compliance being made to the terms of this order.

Order Date :- 16.7.2021
S.Chaurasia